

26PR00195 Estate of Barbara T Hacker

County: santa-barbara

Division: Decedent's Estate

Department: 4 SM-Cook

Hearing date: 2026-06-29

Motion: Petition for Letters of Administration

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Tentative Ruling: Estate of Barbara T Hacker

Case Number

26PR00195

Case Type

Decedent's Estate

Hearing Date / Time

Mon, 06/29/2026 - 08:30

Nature of Proceedings

Petition for Letters of Administration

Tentative Ruling

Probate Notes:

Appearances required.

On April 16, 2026, Wade and Bret Slocum filed a Petition for Letters of Administration requesting that both of them be appointed administrators of the Decedent, Barabra T. Hacker's estate. On June 12, 2026, Jeffrey Slocum filed written objection to that petition, placing this matter at issue and requiring evidentiary hearing to resolve. (In re Estate of Lensch (2009) 177 Cal.App.4th 667, 676; Conservatorship of Farrant (2021) 67 Cal.App.5th 370, 377.)

However, Jeffrey Slocum's written Objection contains request for affirmative relief that cannot be granted without further pleadings on file.

Due to the objection, the following must be submitted:

Competing Petition. A contest to a petition for administration of a decedent's estate may involve a contest to the appointment of the personal representative, a contest to the will, or both.

When appointment of a personal representative is contested, Probate Code section 8004 requires a written objection and competing petition be filed and served in accordance with Probate Code section 8110 [15 days, mail or personal service to all entitled to take by intestate, and each devisee, executor, and alternative executor]. (Prob. Code, § 8004, subd. (a).) The competing petition need not be published as long as publication of the first petition was completed according to statute.

There is no competing petition on file. Objector must file a competing petition for letters of administration on form DE-111, before an evidentiary hearing can be set.

Trust Instrument. The Petition and/or accompanying documents reveal the existence of a trust. A copy of the trust, and all accompanying amendments, must be submitted for review, to ensure compliance with the Decedent's testamentary intent and notice to individuals who might otherwise not be given notice. (Local Rule, 1791(c).)

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

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